

Internal Revenue Service

Re:

To Whom It May Concern,

I request that my largest penalty from the last three tax years be abated according to the First Time Penalty Abatement (FTA) regulations. The following information may help you in making your determination, in that it describes the qualification criteria from the IRC, my declaration that I meet the criteria, and which tax year and penalty I believe to be the largest.

According to **IRM 20.1.1.3.6**, there is penalty relief for failure-to-file, failure-to-pay, and failure-to-deposit penalties if the taxpayer meets certain criteria. I meet all of the first-time penalty abatement criteria as stated below:

- Filing compliance: I have filed (or filed a valid extension for) all required returns and cannot have an outstanding request for a return from the IRS.
- Payment compliance: Must have paid, or arranged to pay all tax due (can be in an installment agreement as long as the payments are current).
- Clean penalty history: No prior penalties (excepting estimated tax penalty) for the preceding three years.

According to the Administrative Waivers and the First Time Abate sections found at **20.1.1.3.3.2** and **20.1.1.3.3.2.1**, I meet the qualifying criteria, and thus qualify for administrative relief from the following penalties:

- Failure to file (FTF) penalty under **IRC 6651(a)(1)**, **IRC 6698(a)(1)**, or **IRC 6699(a)(1)**,
- Failure to pay (FTP) penalty under **IRC 6651(a)(2)** and/or **IRC 6651(a)(3)**, and
- Failure to deposit (FTD) penalty under **IRC 6656**.

As a taxpayer, I am eligible for relief on all penalties that are under the First Time Abatement waiver. According to the **IRM 20.1.1.3.3.2.1**, taxpayers are not required to specifically request penalty relief under the FTA waiver, to be eligible for this waiver. This should account for all the penalties that remain after all account discrepancies have been corrected, and/or are being proposed in the course of examination, abatement or suppression of the penalty or penalties should be made if all FTA criteria have been met.

For the tax year, I request that my largest penalty be abated, which is

I understand that this type of penalty abatement is a one-time consideration.

As this is the case, I have addressed the issues that have resulted in this penalty, and have taken steps to ensure that future penalties can be avoided. Should any additional documentation or explanation be needed, please contact me at the above mailing address or by phone at

Thank you kindly for your assistance and consideration of this request.

Sincerely,



PENALTY WAIVER INSTRUCTIONS

1. Sign and date the letter. The IRS requires a physical signature for this letter.
2. Use the prepaid postage and envelope to mail **only** the signed waiver letter (do not mail these instructions). The prepaid envelope uses the correct IRS mailing address based on your address.

Optional - If you already paid your balance we included a 843 Form with this letter. Sign and date this form and include it with your letter.

3. Wait for a response from the IRS. The IRS will contact you directly by mail with a response to your waiver letter. This takes a minimum of 30 days from when the IRS receives your signed letter, but typically takes between 45-60 days, depending on the time of year. Once approved, they will notify you directly by mail. If the IRS requires additional information they will contact you directly.